

26STCV13825 26STCV13825

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-07-09

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Case Number: 26STCV13825 Hearing Date: July 9, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: July 9, 2026

Case Name: Urbina v. Mobilias Insurance

Company, et al.

Case No.: 26STCV13825 Matter: Motion to Compel Arbitration

Moving

Party: Petitioner Juan Carlos

Garcia Urbina

Responding Party: Respondent Mobilias Insurance Company

Tentative

Ruling: Petitioner Juan Carlos

Garcia Urbina's motion is continued until August 20, 2026.

On April 30,

2026, Petitioner Juan Carlos Garcia Urbina ("Petitioner") filed his petition

against Respondents Mobilias Insurance Company ("Mobilias") and United States

Fire Insurance Company ("Fire Insurance").

Petitioner

moves for the Court to compel a joint arbitration proceeding with Mobilias and

Fire Insurance. Mobilitas opposes. Fire Insurance did not file an opposition.

The Court

notes that, while Petitioner has reserved the hearing on his motion as a motion to compel arbitration, it is, in fact, a motion to consolidate arbitration proceedings with Mobilitas and Fire Insurance.

Legal Standard

Code of

Civil Procedure section 1281.3 states that:

A party to an

arbitration agreement may petition the court to consolidate separate arbitration proceedings, and the court may order consolidation of separate arbitration proceedings when:

(1) Separate arbitration

agreements or proceedings exist between the same parties; or one party is a party to a separate arbitration agreement or proceeding with a third party; and

(2) The disputes arise from the

same transactions or series of related transactions;
and

(3) There is common issue or

issues of law or fact creating the possibility of
conflicting rulings by more than one arbitrator or panel of arbitrators.

If all of the

applicable arbitration agreements name the same arbitrator, arbitration panel, or arbitration tribunal, the court, if it orders consolidation, shall order all matters to be heard before the arbitrator, panel, or tribunal agreed to by the parties. If the applicable arbitration agreements name separate arbitrators, panels, or tribunals, the court, if it orders consolidation, shall, in the absence of an agreed method of selection by all parties to the consolidated arbitration, appoint an arbitrator in accord with the procedures set forth in Section 1281.6.

In the event that the arbitration agreements in consolidated proceedings contain inconsistent provisions, the court shall resolve such conflicts and determine the rights and duties of the various parties to achieve substantial justice under all the circumstances.

The court may exercise its discretion under this section to deny consolidation of separate arbitration proceedings or to consolidate separate arbitration proceedings only as to certain issues, leaving other issues to be resolved in separate proceedings.

This section shall not be applicable to an agreement to arbitrate disputes as to the professional negligence of a health care provider made pursuant to Section 1295.

(Code Civ. Proc., § 1281.3.)

Insurance

Code section 11580.2 establishes certain rules governing uninsured and underinsured motor vehicle insurance policies: "The policy or an endorsement added thereto shall provide that the determination as to whether the insured shall be legally entitled to recover damages, and if so entitled, the amount thereof, shall be made by agreement between the insured and the insurer or, in the event of disagreement, by arbitration. The arbitration shall be conducted by a single neutral arbitrator. An award or a judgment confirming an award shall not be conclusive on any party in any action or proceeding between (i) the insured, his or her insurer, his or her legal representative, or his or her heirs and (ii) the uninsured motorist to recover damages arising out of the accident upon which the award is based." (Ins. Code, § 11580.2, subd. (f).) The provisions of section 11580.2 are deemed to be a part of every uninsured motorist policy. (See *Quintano v. Mercury Casualty Co.* (1995) 11 Cal.4th 1049, 1053; *Harford Fire Insurance Co. v. Macri* (1992) 4 Cal.4th 318, 324; *Travelers Indemnity Co. v. Kowalski* (1965) 233 Cal.App.2d 607, 609.)

Analysis

Preliminary

Issue

A

preliminary issue is that Petitioner served his motions on Fire Insurance and Mobilias electronically, which is improper. (See Proof of Service.) The Court's records show that neither entity has consented to electronic service. Per California Rules of Court, rule 2.251(b), electronic service on a party is valid only with the party's express consent. (Cal. Rules of Court, rule 2.251(b).)

Mobilias

did file an opposition, but Fire Insurance did not. The Court will address the merits of Petitioner's motion, and if at the hearing Fire Insurance submits to the tentative, the tentative will be adopted. Otherwise, the Court will continue the hearing on the motion to allow proper service pursuant to Code of Civil Procedure section 1005, subd. (b). (Code Civ. Proc., § 1005, subd. (b).)

Motion

to Consolidate

Petitioner

moves to consolidate the arbitration proceedings with Mobilias and Fire Insurance into a single proceeding.

In

opposition, Mobilias contends that it does not oppose the consolidation of arbitration, but requests that the Court to "make it clear that contractually UNITED STATES FIRE/BLUESTAR will pay any award for medical specials, and MOBILITAS will pay any award for general damages to avoid double recovery. (Opp., 4:19-21.) Mobilias argues that pursuant to Business and Professions Code section 7455, subdivision (e), "[a]ny benefits provided to an app-based driver under subdivision (a) or (b) of this section shall be considered amounts payable under a worker's compensation law or disability benefit for the purpose of determining amounts payable under any insurance provided under Article 2 (commencing with Section 11580) of Chapter 1 of Part 3 of Division 2 of the Insurance Code." (Bus. & Prof. Code, § 7455.) The Court will not specify which costs Mobilias and Fire Insurance are responsible for, as that determination is based on the agreements with each entity. The Mobilias Agreement states that:

9. Same Element of Loss Where the law

permits, we will not pay for any amounts recoverable under this policy by a “Rideshare Driver” who has received, or is entitled to, payment under any: a. Occupational accident insurance; or b. Driver injury protection insurance.

(Mot., Ex. A, p. 28.)

While the Fire

Insurance policy specifies:

Certificate

DEFINITIONS This document, which is a legal contract between Policyholder and Us to provide coverage for Occupational Accidents.

(Petition, Fire Insurance Policy, p. 4.)

Thus,

the Court will not specify what each entity can cover because the parties are limited to what each policy states.

Also, while

Petitioner and Mobilias agree to a joint arbitration, Petitioner is required to satisfy the elements under Code of Civil Procedure, section 1281.3, to compel Fire Insurance to a consolidated arbitration.

First,

Mobilias is required to arbitrate Petitioner’s claims pursuant to Insurance Code section 11580.2. While the Fire Insurance policy contains the following arbitration provision:

This Arbitration provision permanently bars the institution of any individual or class action lawsuit brought by the Covered Person or the Recipient of Payment. With this binding Arbitration provision, the Covered Person, for himself or herself or the Recipient of Payment is waiving the right to a trial by jury.

(Petition, Fire Insurance Policy, p. 20.)

Also,

the disputes regarding Mobilias and Fire Insurance relate to the same accident Petitioner suffered on December 22, 2023. At the time of the incident,

Petitioner was covered by both policies.

Third,

consolidation is required to prevent inconsistent rulings, as Mobilias and Fire Insurance dispute who is responsible and for how much Petitioner is entitled to from each entity. The Court finds that consolidation achieves substantial justice and does not prejudice Mobilias or Fire Insurance. (See *Parker v. McCaw* (2005) 125 Cal.App.4th 1494, 1505.)

Thus,

all three elements are satisfied to grant consolidation of the separate arbitration proceedings pursuant to Code of Civil Procedure section 1281.3.

Appointment
of Arbitrator

Here,

neither Mobilias's nor Fire Insurance's agreements specify a method to select an arbitrator. Mobilias's policy only states that "[t]he arbitration shall be conducted by a single neutral arbitrator." (Mot., Ex. A, p. 33.)

Code

Civil Procedure section 1281.6 provides that "[i]f the arbitration agreement provides a method of appointing an arbitrator, that method shall be followed. If the arbitration agreement does not provide a method for appointing an arbitrator, the parties to the agreement who seek arbitration and against whom arbitration is sought may agree on a method of appointing an arbitrator and that method shall be followed. In the absence of an agreed method, or if the agreed method fails or for any reason cannot be followed, or when an arbitrator appointed fails to act and his or her successor has not been appointed, the court, on petition of a party to the arbitration agreement, shall appoint the arbitrator." (Code Civ. Proc. § 1281.6.) Upon such a petition, the court shall nominate five potential arbitrators from lists of people supplied jointly by the parties or obtained from a governmental agency concerned with arbitration or private disinterested association concerned with arbitration. (Ibid.) The parties shall then, within five days of receipt of the nominations, jointly select an arbitrator; if the parties fail to do so, the court shall select an arbitrator from among the nominees. (Ibid.)

The parties

dispute as to whether they have engaged in good faith in selecting an arbitrator. Both Mobilias and Petitioner contend that they have agreed to retain Hon. Robert Moss (Ret.) to conduct the arbitration proceedings. However, there is no evidence that Fire Insurance has agreed to the selection of the Hon. Robert Moss. The Court is inclined to continue the hearing on the appointment of an arbitrator to allow the parties to select an arbitrator before the Court proceeds with the selection process.

Petitioner's
Timing Request

Petitioner
does not provide the Court with any legal authority that it has to require arbitration to be completed within 90 days. At this time, the Court denies Petitioner's request.

Conclusion

Petitioner
Juan Carlos Garcia Urbina's motion to consolidate arbitration proceedings continued until August 20, 2026.

Petitioner's
request to require arbitration to be completed within 90 days is denied.